

EMPLOYMENT OR SUPERVISION OF FAMILY MEMBERS

Loudoun County Public Schools (LCPS) has established guidelines for the employment or supervision of family members in accordance with the Code of Virginia.

A. Employment.

1. Definition. For purposes of this policy, "family member" is parent, spouse, sibling, child, child-in-law, or sibling-in-law.

2. Prohibition against the employment of certain family members generally. By law, the Loudoun County School Board (School Board) may not employ or pay, and the Superintendent may not recommend for employment, any family member of the Superintendent or of any School Board member.

3. Exceptions. This prohibition does not apply to the employment, promotion, or transfer within LCPS of any family member who:

- a. Has been employed pursuant to a written contract with the School Board or employed as a substitute teacher or teacher's aide by the School Board prior to the taking of office of the Division Superintendent or any School Board member; or
- b. Has been employed pursuant to a written contract with the School Board or employed as a substitute teacher or teacher's aide by the School Board prior to the inception of the family relationship, or
- c. Was employed by the School Board at any time prior to June 10, 1994, and had been employed at any time as a teacher or other employee of any Virginia school board prior to the taking of office of any member of the School Board or the Division Superintendent.

A family member employed as a substitute teacher may not be employed to any greater extent than the substitute teacher was employed by the School Board in the last full school year prior to the taking of office of such School Board member or Division Superintendent or to the inception of such relationship.

4. Relatives of School Board Members - Certification of Noninvolvement in Hiring. Notwithstanding the rules stated in Section A.2. above, the School Board may employ or pay, and the Division Superintendent may recommend for employment, any family member of a School Board member provided that:

- a. The member certifies that they had no involvement with the hiring decision; and

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- b. The Division Superintendent certifies to the remaining members of the School Board in writing that the recommendation is based upon merit and fitness and the competitive rating of the qualifications of the individual, and that no member of the School Board had any involvement with the hiring decision.

5. Relatives of the Division Superintendent - Certification on Noninvolvement in Hiring. Notwithstanding the rules stated in Section A.2. above, the School Board may employ or pay any family member of the Division Superintendent provided that:

- a. The Division Superintendent certifies that they had no involvement with the hiring decision; and
- b. The Chief Human Resources Officer certifies in writing to the members of the School Board that the recommendation is based upon merit and fitness and the competitive rating of the qualifications of the individual, and that the Division Superintendent had no involvement with the hiring decision.

B. Supervision. No family member, as defined above, of any LCPS employee may be employed by the School Board in a position if the family member is to be employed in a direct supervisory position or administrative relationship, as defined below, either supervisory or subordinate to the employee. No employee will be reassigned to a position where a family member is directly responsible for that employee's supervision or employment activities.

1. For purposes of this policy, an employee "in a direct supervisory position or administrative relationship" is a person who exercises any control over the employment or the employment activities of another person or persons, or is in a position to influence another person's or persons' employment activities.

2. For purposes of this policy, the supervisor of employees holding co-curricular positions is the principal or their designee.

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